

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 2, 2026, AT 8:30 A.M.

12. S-CV-0055748 LAEZMAN, LINDA v. EL DON ESTATES HOA

Demurrer

A review of the court record reveals plaintiffs' first amended complaint was improperly rejected for filing on March 9, 2026. Plaintiffs shall re-file their first amended complaint on or before **July 7, 2026**, and the court will thereafter deem the first amended complaint timely filed. The demurrer to plaintiffs' first amended complaint is continued to **July 16, 2026**, at 8:30 a.m. in Department 3.

13. S-CV-0056214 CARSON, CHRISTOPHER v. BUDAC, ABIGAILA

Defendant Vitas Healthcare Corporation of California's Demurrer to Plaintiffs' Complaint

Defendant demurs to the third, fourth, fifth, and sixth causes of action in plaintiffs' complaint on the grounds the complaint does not allege facts sufficient to state the third cause of action for premises liability, fourth cause of action for negligence per se, fifth cause of action for elderly or disabled neglect, and sixth cause of action for vicarious liability. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Third Cause of Action—Premises Liability

To state a claim for premises liability, plaintiff must establish: (1) duty, (2) breach, (3) proximate cause, and (4) damages. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.) The most important element for imposing a duty is control. (*Soto v. Union Pacific Railroad Co.* (2020) 45 Cal.App.5th 168, 177.)

Here, when taking the factual allegations in the complaint as true, plaintiff does not allege facts sufficient to state defendant controlled the property such that it owed a